

The motion is **DENIED**. Sanctions are imposed against Defendants in the amount of \$2,590. Defendants provided proposed Orders that will be modified to reflect the Court's ruling.

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on February 28, 2025 to Petitioners, John Wesley Bowen and Steven Christopher Jewett, in pro per, for failure to appear on February 24, 2025 as ordered January 23, 2025; failure to appear on January 13, 2025 as ordered on November 13, 2025; and failure to provide notice to Respondents, as ordered November 13, 2025. The Court has received return mail from each Petitioner multiple times from the address listed on the Petition, indicating Petitioners likely do not have notice of today's proceedings. This matter is continued to **Monday, June 2, 2025 at 8:30am in Department 63** for further proceedings regarding the Order to Show Cause re: Dismissal. The clerk is directed to mail a copy of today's minutes and the Order to Show Cause re: Dismissal to each Petitioner at 4412 Hoopa Path, Redding, CA 96003. **No appearance is necessary on today's calendar.**

LOCKE, ET AL. VS. STERNBERG, ET AL.

Case Number: 23CV-0203172

Tentative Ruling on Application to Appear Pro Hac Vice: Boris Zhadanovskiy., an attorney admitted to practice law in the State of Florida, seeks admission pro hac vice in order to represent Plaintiffs Timothy Locke and Deborah Metzger. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). However, the Application was filed on March 26, 2025 for a hearing on April 14, 2025. This does not comply with CCP § 1005. Additionally, there is no proof of service indicating when and how all the parties who have appeared in the matter were served. The Court notes that the County of Shasta was recently added as a defendant and has sought an extension of time.

The Application is **DENIED** without prejudice. Plaintiffs submitted a proposed Order that will be modified to reflect the Court's ruling. In the alternative, Plaintiffs may appear and request a continuance of the hearing in order to provide proper notice.

MAE VS. WILLOW SPRINGS CA, LLC, ET AL.

Case Number: 24CV-0205188

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued February 27, 2025, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by Rule of Court 3.1380(c). In light of the party's stipulation to continue trial, mandatory settlement conference, and pre-trial dates filed on March 5, 2025, the Order to Show Cause is **DISCHARGED**. **No appearance is necessary on today's calendar.**

MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION, ET AL.

Case Number: 24CV-0206073

Tentative Ruling on Motion for Reconsideration: Plaintiff Stacey Massett moves for reconsideration of one or more rulings made on March 3, 2025 by the Honorable Benjamin L. Hanna. CCP § 1008(a) requires the Application be made to the same judge who ruled on the underlying motion. Judge Hanna is not hearing the calendar today. The Court notes that a review hearing is set in this matter on May 19, 2025. This matter is continued to **Monday, May 19, 2025 at 8:30 a.m. in Department 63** for hearing on the motion. **No appearance is necessary on today's calendar.**

SEEKINS VS. VICTORY POWDER COATING, LLC

Case Number: 24CV-0204815

Tentative Ruling on Motion for Summary Adjudication: Defendant Victory Powder Coating, LLC moves for summary adjudication on the Third Amended Complaint filed by Plaintiff Brian Seekins. Plaintiff opposed the motion and raised a notice issue.

If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

CRC 3.1350(b)

The Notice of Motion here reads that Defendant "will move the Court for Summary Adjudication of Plaintiff's claims set forth in his Third Amended Complaint." The specific causes of action and issues are not specifically stated in the Notice of Motion. The Notice of Motion is not compliant with CRC 3.1350(b).

The Motion for Summary Adjudication is **DENIED** without prejudice for insufficient notice and because it does not comply with CRC 3.1350(b). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

ARELLANO VS. USA WASTE OF CALIFORNIA, INC.

Case Number: 22CV-0200801

This matter is on calendar for review regarding status of removal to Federal Court. The matter was removed on December 9, 2022. As it does not appear that this matter will be remanded, this matter is removed from the Court's control due to the removal to Federal Court. Any future hearing dates are vacated and no further appearances will be required. **No appearance is necessary on today's calendar.**